

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

**COMPLAINANTS' OPPOSITION TO RESPONDENTS' MOTION IN *LIMINE* NO. 2
TO PRECLUDE SAMSUNG FROM SEEKING A BOND BASED ON
LICENSING RATES**

At its core, Oura's Motion in Limine No. 2 ("MIL") is a clear attempt to avoid the very bond analysis for which Oura previously advocated when the parties' positions were reversed. Oura should be held to its own prior arguments regarding the "[REDACTED]" for patents that contribute to the alleged success of Oura's ring products, as a matter of fundamental fairness. This is exactly the point Samsung was making in its Prehearing Brief. Moreover, application of Oura's own prior bond analysis to the Oura Accused Products does not prejudice Oura. Accordingly, Samsung should not be precluded from presenting this argument at the hearing.

I. ARGUMENT

A. Oura Analyzes Portions of Samsung's Prehearing Brief Out of Context

In its MIL, Oura takes issue with a portion of a sentence in Samsung's Prehearing Brief: "to the extent the ALJ in [the 1468] Investigation recommends and the Commission adopts Oura's proposed rate as the established rate associated with the Oura Ring products, that rate should apply in this Investigation to the Galaxy Ring product as well." Ex. E (Complainants' Prehearing Br.) at

334; Mot. at 3. But Oura’s Motion takes this sentence fragment out of context and characterizes it as a bond theory never presented in Samsung’s contentions. Oura misses the point.

Samsung concedes that no separate bond theory centered on Oura’s licenses was presented in its burden contentions, nor is Samsung attempting to hide the ball now. Rather, Samsung has consistently taken the position that Oura’s licenses fail to show an established rate even for the patents Oura asserted in the 1468 Investigation. *See, e.g.*, Ex. F (Samsung 1468 Resp. Posthearing Br.) at 90 (“Similarly, there were [REDACTED] that Mr. Jarosz testified he relied upon to derive a [REDACTED].”). Samsung’s argument in its Prehearing Brief is instead concerned with fundamental fairness in the application of bond between the present investigation and the 1468 Investigation. Indeed, the full sentence from Samsung’s brief reads:

Although Samsung disagrees that the alleged “established royalty rate” is so established, and disagrees with the underlying rationale for applying such a royalty rate to the accused products in the 1468 Investigation, to the extent the ALJ in that Investigation recommends and the Commission adopts Oura’s proposed rate as the established rate associated with the Oura Ring products, that rate should apply in this Investigation to the Galaxy Ring product as well.

Ex. E (Complainants’ Prehearing Br.) at 334. This is fully consistent with the position Samsung took in the 1468 Investigation. *See* Ex. G (Samsung 1468 MIL 1) at 6 (“Samsung would be willing to accept [REDACTED] [REDACTED] is also adopted in the pending 1478 Investigation between Samsung and Oura.”).

B. As a Matter of Fairness, Oura’s Analysis Should Apply Equally Across Both Investigations

In the 1468 Investigation, Oura essentially argued that any patent related to the technical design of Oura’s ring form-factor or contributing to Oura’s success would “[REDACTED]

[REDACTED]

[REDACTED].” Ex. H (1468 Tr. (Jarosz)) at 636:10-16. While Samsung does not agree with Oura’s arguments about its alleged “[REDACTED],” Samsung believes Oura should be held to its own analysis as a matter of fairness. Specifically, Oura’s economic expert, Mr. Jarosz, testified at the July hearing in the 1468 Investigation that he relied upon [REDACTED] to derive a purportedly established royalty rate. *Id.* at 651:1-7. As Mr. Jarosz admitted at the hearing, those license agreements [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 647:3-649:25, 650:9-18. Instead of doing any such analysis, Oura argued, without support, that “[REDACTED]

[REDACTED].” *Id.* at 636:17-18; *Id.* (1468 Tr. (Chapp)) at 96:1-5 (“[REDACTED]

[REDACTED] (emphasis added)).

The only conclusion Samsung is able to draw from Oura’s argument in the 1468 Investigation is that any patent that Oura allegedly owns or practices related to any hardware component of a smart ring or related software applications would “[REDACTED]” 1468 Tr. (Chapp) 96:1-5 (“[REDACTED]

[REDACTED] (emphasis added)). Since Samsung has accused Oura’s ring products of practicing several of Samsung’s patents, Samsung’s patents, too, should command Oura’s [REDACTED] to the extent that rate is applied in the 1468 Investigation. Applying Oura’s own bond analysis to Oura’s products is not prejudicial—it is simply fair.



Ultimately, because the 1468 Investigation involved similar products in the same industry as the present Investigation, Oura's bond analysis as related to the Samsung Galaxy Ring in the 1468 Investigation should be equally applicable to its own products at issue here.

II. CONCLUSION

For the foregoing reasons, Samsung respectfully request that Oura's MIL be denied.

Dated: September 2, 2026

Respectfully submitted,

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EXHIBIT E



**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

COMPLAINANTS' PRE-HEARING BRIEF

[REDACTED]

C. Bonding

If the Commission enters an LEO or CDO, a respondent may continue to import and sell its products during the PRP under a bond in an amount “sufficient to protect the complainant from any injury.” 19 U.S.C. § 1337(j)(3). A bond is warranted here to protect Samsung from injury. There is direct competition between Samsung’s DI Products and the Accused Products. For instance, Samsung considers the Accused Products to be direct competitors. RX-156C, RX-242C, JDX-2C, 33. As a result, there is a likelihood of injury to Samsung in the form of displaced sales, reduced market share, and/or price undercutting.

In the co-pending 1468 Investigation, Oura and its economic expert, John Jarosz, contended that [REDACTED] [REDACTED] set an established royalty rate for bond of [REDACTED] [REDACTED]. *See* CX-1697C, ¶¶201-203. Although Samsung disagrees that the alleged “established royalty rate” is so established, and disagrees with the underlying rationale for applying such a royalty rate to the accused products in the 1468 Investigation, to the extent the ALJ in that Investigation recommends and the Commission adopts Oura’s proposed rate as the established rate associated with the Oura Ring products, that rate should apply in this Investigation to the Galaxy Ring product as well.

XI. CONCLUSION

As explained herein, the evidence will show that a violation of Section 337 has occurred, and the ALJ should recommend and appropriate LEO, CDO, and bond to protect Samsung’s domestic industry and curtail infringement of the Asserted Claims.

EXHIBIT F



**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

**CERTAIN SMART WEARABLE
DEVICES, SYSTEMS, AND
COMPONENTS THEREOF**

Inv. No. 337-TA-1468

RESPONDENTS' RESPONSIVE POST-HEARING BRIEF

965, 2017 WL 1476193, at *3 (USITC Feb. 1, 2017) (Comm’n Op.); *see Certain Elec. Skin Care Devices, Brushes, & Chargers Therefor*, Inv. No. 337-TA-959, 2017 WL 8683854, at *15 (USITC Feb. 13, 2017) (Comm’n Op.) (stating a complainant must demonstrate that “respondents maintain commercially significant inventories in the United States or have significant domestic operations that could undercut the remedy provided by an exclusion order.”). Here, Samsung does not dispute the commercial significance of its inventory. JX-0008C.002. As with the LEO, any CDO should provide a warranty and repair exemption as discussed above.

C. Bond

No bond should issue here. Mr. Jarosz’s own price differential analysis demonstrates that there is effectively no price difference between Samsung’s accused products and Oura’s domestic industry products. The Commission may set the bond based on a price differential analysis by eliminating the differential between the Complainant’s products and the imported, infringing product. *Certain Network Devices, Related Software & Components Thereof*, Inv. No. 337-TA-945, Comm’n Op., at 127 (USITC June 1, 2017) (“When reliable price information is available, the Commission has often set the bond by eliminating the differential between the domestic product and the imported, infringing product.”); *Certain Microsphere Adhesives, Processes for Making Same, & Prods. Containing Same, Including Self-Stick Repositionable Notes*, Inv. No. 337-TA-366, USITC Pub. 2949, at 24 (Jan. 1996) (Comm’n Op.). At the Hearing, however, Mr. Jarosz acknowledged that his retail price differential analysis demonstrated that the difference between comparable finishes of Samsung’s Galaxy Ring and Oura’s Gen. 4 Ring was approximately zero on average. Tr. (Jarosz) 644:4-645:13. The retail pricing data that Mr. Jarosz produced and relied upon at the Hearing was uniform across sizes and retailers, without any evidence of discounts or price changes.

On the other hand, Mr. Jarosz acknowledged at the Hearing that his average selling price

[REDACTED]

differential suffered from multiple reliability issues. Tr. (Jarosz) 641:4-642:1. Similarly, there were significant differences across the three licenses that Mr. Jarosz testified he relied upon to derive a purportedly established royalty rate. Tr. (Jarosz) 651:1-7; CX-0635C.0004; CX-0634C.0004; CX-0633C.0004; CDX-0009C.15. Specifically, Mr. Jarosz admitted that the agreements applied to different groups of licensed patents: the Omate agreement covering 28 patents with the same title as the Asserted Patents, the RingConn agreement covering all predecessors and descendants of the '178 Patent, but the Circular agreement covering all predecessors and descendants of over 80 patents, including many unrelated to the Asserted Patents. Tr. (Jarosz) 647:3-649:25; CX-0635C.0003-4 at Section 4.1 (Omate licensed patents); CX-0634C.0002, § 1.7 (RingConn licensed patents); CX-0633C.0013-18, Ex. A (Circular licensed patents). Nevertheless, no one, including Mr. Jarosz, attempted to apportion the licensed rates to the Asserted Patents. Tr. (Jarosz) 650:9-18. Instead, Mr. Jarosz relied on Mr. Chapp's hearing testimony that "if [Oura] were to license – license these patents, any or all of them would command a rate of 8.5 percent of gross revenues with a \$25 per-unit minimum. So whether it's one or all components in that portfolio, it would command the same rate." Tr. (Jarosz) 636:10-18; *see also* Tr. (Chapp) 96:1-5. Mr. Chapp's testimony, however, is undermined by the license agreements' own disparate terms, demonstrating no such "standard rate." *Id.*

Finally, Mr. Jarosz attempted to raise the same argument—that subscription rates should be considered as part of the bond analysis—that was previously rejected by the ALJ and Commission in the 1398 Investigation. Mr. Jarosz's superficial reference to the issue, however, failed to fill in the holes identified in the 1398 Initial Determination and Recommendation and 1398 Commission Opinion. *See* 1398 ID at 141 ("The problem is that the evidence does not show or even approximate what percentage of purchasers of Oura Gen. 3 and Oura Gen. 4 rings also

EXHIBIT G



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WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

**CERTAIN SMART WEARABLE DEVICES,
SYSTEMS, AND COMPONENTS
THEREOF**

Inv. No. 337-TA-1468

**RESPONDENTS' MOTION IN *LIMINE* NO. 1 TO STRIKE AND PRECLUDE
TESTIMONY AND EVIDENCE RELATING TO UNDISCLOSED THEORIES FOR
CALCULATING BOND**

Respondents Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, “Samsung”); Reebok International Limited, RILUK IPCO Limited, The Original Fit Factory Ltd., Truconnect Ltd., and Reebok International Ltd., LLC (collectively, “Reebok”); and Zepp Health Corporation, Anhui Huami Information Technology Co., Ltd., Zepp Inc., and Zepp North America Inc. (collectively, “Zepp”) (all respondents collectively, “Respondents”) respectfully move in *limine* to strike and preclude Ouraring Inc. (“Oura” or “Complainant”) and its expert, Mr. Jarosz, from presenting any arguments or opinions regarding the calculation of bond based on a lost profits analysis or “industry average” royalty rate that Oura never disclosed in its contentions.

GROUND RULE 5.1 CERTIFICATION

Pursuant to Ground Rule 5.1, counsel for Respondents certify that they made reasonable, good-faith efforts to resolve this matter with Complainant Ouraring Inc. (“Oura”) before filing this motion. The parties exchanged motion *in limine* topics on June 22, 2026, and met and conferred on those topics on June 23, 2026. Oura opposes this motion.

theory, Oura's industry-average theory should be excluded.¹

IV. CONCLUSION

For the foregoing reasons, Respondents request that any argument or opinions regarding Oura's late-disclosed "lost profits" analysis or "industry average" bond valuation be excluded and stricken.

¹ While the Respondents do not believe Oura's "industry-average" royalty rate argument or Mr. Jarosz's related opinions were timely disclosed in Oura's contentions regarding bond, Samsung would be willing to compromise on this issue, as expressed in Respondents' Prehearing Brief. Specifically, Samsung would be willing to accept Oura's proposed "industry average" bond of \$[REDACTED] per unit for the Samsung accused products on the condition that the [REDACTED]% "industry average" royalty rate used to calculate the per unit bond for the Respondents is also adopted in the pending 1478 Investigation between Samsung and Oura. *See* Exhibit D (Complainant's Pre-Hearing Brief) at 426. Because the 1478 Investigation involves similar products in the same industry, Oura's analysis should be equally applicable to its own products at issue in that investigation.

EXHIBIT H



REDACTED IN ITS ENTIRETY

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on September 2, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
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CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on September 10, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

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